

24LBCV01935 24LBCV01935

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C09%2F10%2F2026

Source SHA-256: 20f746b334d338690d302bdcc5835d8aafe7f0a7b0dba4f0bc5fdf9134feb4cb

Case Number: 24LBCV01935 Hearing Date: September 10, 2026 Dept: S27

Defendant, The Ensign Group, Inc. filed this motion for summary judgment on 9/02/25, setting it for hearing over a year later, on 12/01/26. The Court's online system shows the hearing scheduled for 9/10/26, but the Court attempted to look for a stipulation and/or order changing the hearing date and was not able to locate such evidence. The Court was also not able to locate evidence that Moving Defendant gave notice of the new hearing date. This is concerning in light of the lack of opposition. Notably, there have been thousands of documents filed in the case, and it is likely the rescheduling document and notice exist, but the Court could not locate them.

Defendant must lodge a copy of any stipulation or order changing the hearing date and any documents giving the other parties notice of that change prior to the hearing. If Defendant does so, the motion will be granted. Any opposition to the motion was due 20 days prior to the hearing, and no timely opposition papers have been filed.

Recently, in *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first

undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

If the parties submit on the tentative ruling, the motion will be continued for one month, to Tuesday, 10/12/26 at 8:30 a.m. in Department S27, so the Court can ensure Plaintiff has notice and an opportunity to oppose.

Moving Defendant is ordered to give notice.